



DEPARTMENT OF HUMAN SERVICES

County Finance and Accounting, Executive Director Rules

RULE MANUAL VOLUME 5, FINANCE AND ACCOUNTING RULES

11 CCR 2508-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE, FISCAL IMPACT/REGULATORY ANALYSIS, AND SPECIFIC STATUTORY AUTHORITY OF REVISIONS MADE TO STAFF MANUAL VOLUME 5

Revisions to sections 5.210.31, 5.210.312, 5.210.313, 5.210.314, 5.210.315, 5.221.2, 5.221.3, 5.221.32, 5.221.322, 5.221.323 were finally adopted at the 11/1/85 State Board meeting, with an effective date of 1/1/86 (Document 6). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.105.416, 5.105.481, 5.111.25, 5.220.11, 5.220.2 and 5.550.1 were finally adopted at the 12/6/85 meeting with an effective date of 2/1/86 (Document 8). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.640.51, 5.640.53, 5.640.54, 5.640.56, and 5.640.57 were finally adopted at the 12/6/85 meeting with an effective date of 2/1/86 (Executive Director Document 1). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.312 through 5.313.3 were finally adopted at the 6/6/86 meeting with an effective date of 8/1/86 (Executive Director Document 1 and Document 2). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions and additions to Section 5.505.2, were finally adopted at the 7/11/86 State Board meeting, with an effective date of 9/1/86 (Document 13). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Addition of Sections 5.155, 5.155.1, 5.155.2, were emergency adopted at the 7/11/86 State Board meeting, with an effective date of 7/11/86 (Document 10). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions and additions to sections 5.650 and 5.221.3 were finally adopted at the 9/5/86 State Board meeting, with an effective date of 11/1/86 (Document 2). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions and additions to section 5.155 were finally adopted emergency at the 9/5/86 State Board meeting with an effective date of 8/1/86 (Document 5). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.155.1, 5.155.2 were emergency adopted at the 10/3/86 State Board meeting, with an effective date of 10/3/86 (Document 3). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions, deletions, and additions to sections 5.224.1, 5.224.2, 5.225, 5.340.3, 5.420, 5.700, 5.710, 5.715 - 5.720, 5.730, and 5.740 were finally adopted at the 11/7/86 State Board meeting, with an effective date of 1/1/87 (Documents 11, 14, 1 E.D., 2 E.D.). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to section 5.505.2 were adopted emergency at the 11/7/86 State Board meeting, with an effective date of 11/7/86 (Document 19). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.155.1 and 5.155.2 were finally adopted emergency at the 11/7/86 State Board meeting, with an effective date of 10/3/86 (Document 17). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.111.13 and 5.502 were finally adopted following publication at the 3/6/87 State Board meeting, with an effective date of 6/1/87 (Document 1 E.D.). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Deletion of sections 5.721 through 5.724.21 were finally adopted following publication at the 6/5/87 State Board meeting, with an effective date of 8/1/87 (Document 18). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.505.2 and 5.505.3 were finally adopted following publication at the 8/7/87 State Board meeting, with an effective date of 10/1/87 (Document 15). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions and deletions to sections 5.505.2 - 5.505.3 and 5.155.1 - 5.155.2 were emergency adopted at the 9/11/87 State Board meeting, with an effective date of 9/11/87 (Documents 18 and 28). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Deletions to section 5.155.1 - 5.155.2 were final adoption of emergency at the 10/2/87 State Board meeting, with an effective date of 9/11/87 (Document 11). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.505.2 through 5.505.3 were emergency and final adoption at the 11/6/87 State Board meeting, with an effective date of 11/6/87 (Document 14). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.223 through 5.224 were emergency adopted at the 1/8/88 State Board meeting, with an effective date of 1/8/88 (Document 9). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 5.505.2 and 5.505.3 were finally adopted following publication at the 6/3/88 State Board meeting, with an effective date of 8/1/88 (CSPR# 88-2-8-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 5.111 were finally adopted following publication at the 8/5/88 State Board meeting, with an effective date of 10/1/88 (CSPR# 88-1-15-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.210 and 5.221 were emergency adopted at the 9/9/88 State Board meeting, with an effective date of 10/1/88 (CSPR# 88-8-1-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.210 and 5.221 were final adoption of emergency at the 10/7/88 State Board meeting, with an effective date of 10/1/88 (CSPR# 88-8-1-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.010 - 5.013, 5.154, 5.210, and 5.640 were finally adopted following publication at the 10/7/88 State Board meeting, with an effective date of 12/1/88 (CSPR# 88-8-12-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.000, 5.010 - 5.013, 5.120, 5.155, 5.200 - 5.221, 5.223 - 5.230, 5.300, 5.315, 5.400 - 5.411, 5.430 - 5.511, 5.550 - 5.630, and 5.640 were finally adopted following publication at the 10/7/88 State Board meeting as Executive Director rule, with an effective date of 12/1/88 (CSPR# 88-2-19-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.111, 5.153, and 5.390 were finally adopted following publication at the 4/7/89 State Board meeting as Executive Director rule, with an effective date of 6/1/89 (CSPR# 88-12-6-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to Table of Contents and sections 5.100 - 5.120, 5.157 - 5.211, 5.230, 5.300 - 5.392, 5.450, and 5.900 - 5.910 were finally adopted following publication at the 1/5/90 State Board meeting as an Executive Director rule, with an effective date of 3/1/90 (CSPR# 89-9-19-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.210 through 5.211 were adopted emergency at the 7/6/90 State Board meeting as Executive Director rule, with an effective date of 7/6/90 (CSPR# 90-6-4-1b). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.210 through 5.211 were final adoption of emergency at the 8/3/90 State Board meeting as Executive Director rule, with an effective date of 7/6/90 (CSPR# 90-6-4-1b). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to Table of Contents and sections 5.100 - 5.101, 5.111, 5.315, 5.391 - 5.392, and 5.910 were finally adopted following publication at the 11/2/90 State Board meeting as an Executive Director rule, with an effective date of 1/1/91 (CSPR# 90-5-3-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 5.105 were adopted emergency at the 11/2/90 State Board meeting as an Executive Director rule, with an effective date of 1/1/91 (CSPR# 90-9-17-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 5.105 were final adoption of emergency at the 12/7/90 State Board meeting, during the Executive Director Rule-making session as an Executive Director rule, with an effective date of 1/1/91 (CSPR# 90-9-17-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to the entirety of Staff Manual Volume 5 were final adoption following publication at the 11/1/91 State Board meeting, during the Executive Director Rule-making session as an Executive Director rule, with an effective date of 1/1/92 (CSPR# 91-3-26-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to Staff Manual Volume 5 were final adoption following publication at the 4/3/92 Executive Director Rule-making session, with an effective date of 6/1/92 (CSPR# 91-11-12-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to the Table of Contents and section 5.420 were final adoption following publication at the 8/6/93 Executive Director Rule-making session, with an effective date of 10/1/93 (CSPR# 93-4-28-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 5.101.331 were final adoption following publication at the 1/7/94 Executive Director Rule-making session, with an effective date of 3/1/94 (CSPR# 93-5-26-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.153, 5.360, and 5.420 were final adoption following publication at the 4/1/94 Executive Director Rule-making session, with an effective date of 6/1/94 (CSPR# 94-2-16-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 5.105 and 5.210 were final adoption following publication at the 6/3/94 Executive Director Rule-making session, with an effective date of 8/1/94 (CSPR#'s 94-2-9-1 and 94-2-9-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Rewrite of this Finance Staff Manual was final adoption following publication at the 1/3/97 Executive Director Rule-making session, with an effective date of 3/1/97 (CSPR# 96-9-3-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 5.010 - 5.013, 5.101 - 5.105, and 5.153 were final adoption following publication at the 1/8/99 Executive Director Rule-making session, with an effective date of 3/1/99 (CSPR# 98-10-28-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revision of Section 5.424 was final adoption following publication at the 2/6/2009 Executive Director rule-making session, with an effective date of 4/1/2009 (Rule-making# 08-8-13-3). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Boards and Commissions Division, State Board Administration.

Rewrite of this Finance Staff Manual was final adoption following publication at the 3/10/2004 Executive Director Rule-making session, with an effective date of 5/1/2004 (Rule-making# 03-6-30-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Department of Human Services, Office of Performance Improvement, Boards and Commissions Division.

Rewrite of these rules was final adoption following publication at the 5/4/2012 Executive Director Rule-making session, with an effective date of 7/1/2012 (Rule-making# 11-9-12-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Enterprise Partnerships, Division of Boards and Commissions, State Board Administration.

5.000 FINANCE AND ACCOUNTING

5.100 PURPOSE AND SCOPE

These rules are the fiscal rules for county departments of social/human services concerning public assistance, social services, other forms of assistance, and the administration of the above including but not limited to internal controls, financial reporting, accounting, and auditing.

5.200 ROUTINE REPORTING PERIOD

5.201 Monthly Reporting to the Colorado Department of Human Services

The county social/human services director shall report to the Colorado Department of Human Services at such times and in such manner and form as the Colorado Department of Human Services may from time to time direct. The routine reporting period from the county to the Colorado Department of Human Services is a calendar month. The Controller of the Colorado Department of Human Services shall determine the date required to submit financial data for each monthly reporting cycle.

5.300 PROCUREMENT PROCESS

5.301 Counties Shall Follow County Procurement Processes

County departments of social/human services shall follow county procurement processes. If counties do not have procurement processes in place, State Procurement Rules shall be used pursuant to 1 CCR 101 through 1 CCR 109.

5.302 Compliance with Office of Management and Budget (OMB) Circulars

County departments of social/human services shall comply with 2 C.F.R. Part 200 and any other applicable federal cost circulars. When counties are a pass-through entity, they shall hold their subrecipients and contractors accountable for compliance with 2 C.F.R. Part 200 and any other applicable circulars. No later amendments or editions are incorporated.

Copies of this material are available by contacting the Controller of the Colorado Department of Human Services, 1575 Sherman Street, Denver, Colorado, 80203, and online at <http://www.ecfr.gov/cgi-bin/retrieveECFR?gp=&SID=87f8582883b9a1bdf2ba739bee355a07&mc=true&n=pt2.1.200&r=PART&ty=HTML>. Additionally, any incorporated material in these rules may be examined at any State publications depository library.

5.400 County Allocations

5.401 Counties Shall Use Colorado Department of Human Services Guidance [Rev. eff. 7/1/12]

County departments of social/human services shall refer to an annual Colorado Department of Human Services county allocation letter which sets forth program allocations, as well as procedures that counties shall follow regarding any appeal of an allocation, closeout of actual expenditures each year, as well as methodology and data used to calculate annual allocations by program.

5.500 CONTRACTS

5.501 Contract Procedures

County departments of social/human services shall adhere to all county guidelines for contract processes and procedures. In the absence of county procedures, county departments of social/human services shall follow State contract processes and procedures pursuant to 1 CCR 101 through 1 CCR 109.

5.600 TRAVEL

5.601 Travel Procedures

County departments of social/human services shall adhere to all county guidelines for travel policies and reimbursement procedures. In the absence of county policies and procedures, county departments of social/human services shall follow State travel policies and procedures pursuant to 1 CCR 103-1.

5.700 REQUIRED USE OF STATEWIDE AUTOMATED SYSTEMS

County departments of social/human services shall use the Colorado Department of Human Services automated statewide client and/or provider information systems. These systems are designed to collect and store program data; assist with eligibility and payment determinations; generate forms and reports; create electronic benefit authorizations; and add to, delete, or make changes to the information on file.

5.800 REPORTING OF EMPLOYEE THEFT OR EMBEZZLEMENT

Any suspected theft or embezzlement of federal, State or local funds shall be immediately reported to at least one level of management above the party(s) suspected or to the county social/human services board. In addition, theft or embezzlement of State and/or federal funds or assets totaling \$5,000 or more per incident shall be reported in writing to the county social/human service board and to the Audit Division Director of the Colorado Department of Human Services at 4126 South Knox Court, Denver, Colorado 80236.

5.900 MAINTAIN INTERNAL CONTROLS AND ADEQUATE SEGREGATION OF DUTIES

County departments of social/human services shall maintain a written set of internal control policies and procedures that promote a sound internal control environment that ensures an adequate and appropriate segregation of duties. The same staff may not initiate, authorize, and record a transaction, if staff also has the ability to receipt or disburse monies for that same transaction.

Editor's Notes

History

Rule sections SB&P, 5.424 eff. 04/01/2009.

Entire rule eff. 07/01/2012.

Entire rule eff. 04/01/2017.